

authority to agree to an arbitration provision within an admission agreement...” (*Gordon, supra*, 70 Cal.App.5th at 1030.)

Again, Plaintiff did not execute a health care power of attorney. In fact, the General Power of Attorney Plaintiff signed specifically says it does not authorize anyone to make medical or other health care decisions for Plaintiff. In *Gordon*, the operative durable power of attorney advised it did not authorize anyone to make medical or health care decisions on the principal’s behalf, but it did specifically empower the agent to “demand, arbitrate, and pursue litigation on [principal’s] behalf concerning all rights and benefits to which [principal] may be entitled...” (*Gordon, supra*, 70 Cal.App.5th at 1022-1023.) There is no such designation in the power of attorney form at play in the instant matter.

The only powers Plaintiff delegated to Selisker were the powers over goods and services transactions, banking transactions, insurance transactions, and personal relationships and affairs. Defendant has not provided any authority that demonstrates Selisker had the authority within these four specific grants of power to bind Plaintiff to an arbitration agreement in connection with her residence at Defendant’s facility. The only authority Defendant cites in support of its arguments – *Gordon, Garrison*, and *Hogan* – are factually distinguishable and do not support granting the instant motion.

Since the executed General Power of Attorney did not grant Selisker the power to either make health care decisions for Plaintiff or make decisions relating to “claims and litigation,” Selisker did not have authority to sign the arbitration agreement on Plaintiff’s behalf. As a result, there is no arbitration agreement between the parties.

The parties also discuss the delegation clause in the arbitration agreement itself. Defendant argues if there is any dispute about whether the agreement is enforceable, this Court must still order the parties to arbitration so the arbitrator can decide the issue of enforceability. However, since there is no arbitration agreement between the parties, the court need not consider the delegation clause or its effect.

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CASE #	CASE NAME	HEARING NAME
CVRI2404340	LAFAYETTE FEDERAL CREDIT UNION VS LIYANAPATABENDY	MOTION TO ENTER JUDGMENT PURSUANT TO CCP § 664.6

Tentative Ruling:

DENIED: No showing the Court reserved jurisdiction to enforce settlement pursuant to CCP 664.6..